

LABOUR LAW - II : UNIT V

FACTORIES ACT, CHILD LABOUR & EQUAL REMUNERATION

LL.B (3-YDC) IV Semester | Osmania University - Faculty of Law

🎯 TARGET: 75+ MARKS | UNIT V COVERAGE: 100%

UNIT V — TABLE OF CONTENTS

Section	Topic	Stars
OVERVIEW	Unit V Importance & Syllabus Scope	★★★★★
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A.2	Safety Provisions — Factories Act 1948	★★★★★
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A.4	Working Hours & Leave — Factories Act	★★★★★
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PART B	LONG ESSAYS (4 essays)	
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PART C	PROBLEM QUESTIONS (5 problems)	
C.1	Child employed in fireworks factory	★★★★★
C.2	Women paid less than men for same work	★★★★★
C.3	Factory without canteen for 300 workers	★★★★★
C.4	Worker made to work 12 hours a day	★★★★★
C.5	Adolescent employed in mine	★★★★★



UNIT V — OVERVIEW & SYLLABUS SCOPE

★★★★★ HIGH PRIORITY UNIT

Unit V deals with **THREE** important areas:

1. **Factories Act, 1948** — workplace safety and welfare
2. **Child Labour (Prohibition & Regulation) Act, 1986** — child protection
3. **Equal Remuneration Act, 1976** — gender wage equality



What's IN Unit V

- **Factories Act, 1948:**
 - Definition of factory, worker, occupier
 - Health provisions (Sections 11-20)
 - Safety provisions (Sections 21-41)
 - Welfare provisions (Sections 42-50)
 - Working hours and leave
 - Hazardous processes (Chapter IV-A)
 - Employment of women and young persons
- **Child Labour (Prohibition & Regulation) Act, 1986:**
 - Child below 14 — complete prohibition
 - Adolescent (14-18) — hazardous restriction
 - 2016 amendment
 - Rights of child under Constitution
- **Equal Remuneration Act, 1976:**
 - Equal pay for equal work
 - Constitutional basis (Article 39(d))
 - Now in Code on Wages, 2019



What is NOT in Unit V

- ~~×~~ Wages, Code on Wages → Unit I
- ~~×~~ Bonus → Unit II
- ~~×~~ ESI, EC Act → Unit III
- ~~×~~ EPF, Maternity, Gratuity → Unit IV



Expected Exam Questions from Unit V

- **Part A:** 1-2 short notes (Child Labour, Equal Pay, Welfare provisions very likely)
- **Part B:** 1 long essay (Factories Act Health/Safety/Welfare OR Child Labour OR Equal Pay)
- **Part C:** Possibly 1 problem (child employment / equal pay violation / factory welfare)

⚠ Critical Numbers to Memorize

Factories Act, 1948

- Factory threshold: **10+ with power; 20+ without power**
- Cleanliness: floors swept at least **daily**, walls painted every **5 years**
- Space: **14.2 cubic metres** per worker
- First-aid: **1 box per 150 workers**
- Canteen: **250+ workers**
- Rest room/shelter: **150+ workers**
- Crèche: **30+ women workers**
- Welfare officer: **500+ workers**
- Ambulance room: **500+ workers**
- Safety officer: **1000+ workers** OR hazardous
- Weekly hours: **48**
- Daily hours: **9**
- Interval: **30 minutes** after 5 hours
- Spread-over: **10.5 hours**
- Overtime: **double the ordinary rate**
- Annual leave: **1 day per 20 days worked** (adult); **1 per 15 days** (young)
- No child below **14** in factory
- Young person: **14-18 years**

Child Labour Act, 1986

- Child: **below 14 years**
- Adolescent: **14-18 years**
- Penalty: **6 months to 2 years + Rs.20,000-50,000**
- Rehabilitation Fund: **Rs.15,000** per child (State adds Rs.5,000)

Equal Remuneration Act, 1976

- Constitutional basis: **Article 39(d)**
- Now in **Code on Wages, 2019 — Section 3**
- Covers **male, female, transgender**

PART A — SHORT NOTES (6 marks each)

A.1 — Health Provisions under Factories Act 1948 ★★★★★

Source: Chapter III (Sections 11-20) of Factories Act, 1948.

Objective: To ensure that the physical environment of the factory is clean, safe, and conducive to good health of workers.

Key Provisions:

Section 11 — Cleanliness

- Factory to be kept **clean** and free from effluvia

- Floors swept and **cleaned daily**
- Dirt and refuse removed daily
- Floors washed weekly (or more frequently if required)
- Walls, ceilings — painted/varnished every **5 years**
- Whitewashed every **14 months** (if not painted)
- Records of dates maintained

Section 12 — Disposal of Wastes and Effluents

- Effective arrangements for **disposal of wastes and effluents**
- From manufacturing process
- Compliance with rules made by State government

Section 13 — Ventilation and Temperature

- **Adequate ventilation** by circulation of fresh air
- **Reasonable temperature** to secure comfort of workers
- Excessively hot processes insulated or separated

Section 14 — Dust and Fume

- Effective measures to **prevent inhalation** of dust, fumes, gases
- Exhaust appliances near sources
- Stationary internal combustion engine — only in separate room

Section 15 — Artificial Humidification

- Where humidity artificially increased — regulated
- Water used must be **pure** (from public supply or purified)
- Hygrometers at prescribed places

Section 16 — Overcrowding

- No factory room to be overcrowded
- Minimum **14.2 cubic metres** of space per worker
- For factories before commencement of Act — **9.9 cubic metres**

Section 17 — Lighting

- **Sufficient and suitable lighting** in every part
- Natural or artificial
- Prevention of glare and formation of shadows
- Damaged or dirty windows — cleaned/replaced

Section 18 — Drinking Water

- **Wholesome drinking water** at convenient places
- Marked “**DRINKING WATER**” in English and local language
- If 250+ workers — **cool water** during hot weather
- At least 6 metres away from latrines/urinals/washing places

Section 19 — Latrines and Urinals

- **Adequate, clean, well-ventilated** latrines and urinals
- **Separate for males and females** (mandatory)

- Lights maintained in latrines
- Number based on worker count

Section 20 — Spittoons

- **Spittoons at convenient places**
- Kept clean and hygienic
- Penalty for spitting elsewhere

 **Example:** A factory with 300 workers must have separate male/female toilets (Section 19), cool drinking water (Section 18 — 250+), daily floor cleaning (Section 11), and minimum 14.2 cubic metres per worker (Section 16).

 **TIP:** Mnemonic — “**CVDAHOLDLS**” — Cleanliness, Ventilation, Dust, Artificial humidity, Humidification, Overcrowding, Lighting, Drinking water, Latrines, Spittoons (Sections 11-20).

A.2 — Safety Provisions under Factories Act 1948 ★★★★★

Source: Chapter IV (Sections 21-41) of Factories Act, 1948.

Objective: To protect workers from accidents caused by machinery, dangerous operations, fire, and other hazards.

Key Provisions:

Section 21 — Fencing of Machinery

- Every moving part of prime mover, transmission machinery, dangerous part must be **securely fenced**
- Fencing must be maintained while parts are in motion

Section 22 — Work on or near Machinery in Motion

- Only by **pecially trained adult males**
- With notified precautions
- Women/young persons NOT allowed on live machinery

Section 23 — Employment on Dangerous Machines

- **No young person** to work on dangerous machine
- Unless fully instructed and supervised

Section 24 — Striking Gear

- Devices to **cut off power** from prime movers
- Maintained in good condition

Section 27 — Prohibition near Cotton Openers

- **No women or children** near cotton opening machines

Section 28 — Hoists and Lifts

- **Good mechanical construction**, sound material, adequate strength
- Tested and examined every **6 months**
- Maximum load marked

- Gates on every landing

Section 29 — Lifting Machines, Chains, Ropes

- Good condition
- Properly maintained and tested periodically

Section 32 — Floors, Stairs and Means of Access

- Soundly constructed and maintained
- Free from obstruction
- Handrails provided

Section 33 — Pits, Sumps, Openings

- **Securely covered or fenced**

Section 34 — Excessive Weights

- **No worker to carry excessive loads** likely to cause injury

Section 35 — Protection of Eyes

- **Goggles or screens** where risk of injury to eyes exists
- From particles or fragments of substances

Section 36 — Precautions against Dangerous Fumes

- Entry into confined space with dangerous fumes
- Only with **breathing apparatus and supervision**
- Written permit required

Section 37 — Explosive or Inflammable Dust/Gas

- Precautions against explosion risk

Section 38 — Precautions against Fire

- Precautions to **prevent outbreak of fire**
- **Safe means of escape** in event of fire
- **Fire alarms** and fire-fighting equipment
- Workers trained in fire drills
- Fire exits marked and maintained clear

Section 40-A — Safety Officers

- In factories with **1,000+ workers** OR hazardous processes
- Qualified safety officer to be appointed

Section 41 — Power of Inspector

- Inspector can order **additional safety measures**

 **Example:** A chemical factory must fence all moving machinery (Section 21), maintain fire escape routes (Section 38), appoint a safety officer if 1,000+ workers (Section 40-A), and no woman can operate dangerous machinery in motion (Section 22).

 **TIP:** Mnemonic — Welfare Numbers: “**30-150-250-500**” (crèche-rest room-canteen-welfare officer). Safety key: Fence → Train → Test → Protect.

A.3 — Welfare Provisions under Factories Act 1948 ★★★★★

Source: Chapter V (Sections 42-50) of Factories Act, 1948.

Objective: To provide amenities and facilities for the well-being and comfort of workers.

Key Provisions:

Section 42 — Washing Facilities

- **Adequate and suitable** washing facilities
- Maintained in clean condition
- **Separate for men and women**
- Soap and nail brushes provided

Section 43 — Facilities for Storing and Drying Clothing

- Where workers are required to wear special clothing
- Facilities for storing and drying clothing provided

Section 44 — Facilities for Sitting

- **Sitting facilities** for workers obliged to work standing
- Opportunity to sit during work intervals

Section 45 — First-Aid Appliances

- **One first-aid box per 150 workers** (or fraction thereof)
- Equipped with prescribed contents (antiseptics, bandages, etc.)
- In charge of a **trained person**
- **Ambulance room** where **500+ workers** — with nurse

Section 46 — Canteens

- **MANDATORY** where **250 or more workers**
- Managed as per State government rules
- Nutritious food at reasonable prices
- Workers' committee for management (optional)

Section 47 — Shelters, Rest Rooms and Lunch Rooms

- **Where 150 or more workers**
- Adequate shelters or rest rooms
- Lunch rooms with provision for drinking water
- Maintained in cool and clean condition

Section 48 — Crèches

- **Where 30 or more women workers**
- Room(s) for children below 6 years of age
- Adequate, clean, and well-ventilated
- **Trained women in charge**
- Mothers allowed time to feed children

Section 49 — Welfare Officers

- Where 500 or more workers
- Qualified welfare officer to be appointed
- Duties: worker welfare, grievance handling, liaison with management

Quick Reference Table:

Workers	Mandatory Facility
150+	First-aid box
150+	Rest room / shelter
250+	Canteen
30+ women	Crèche
500+	Welfare officer
500+	Ambulance room
1000+	Safety officer

 **Example:** A garment factory with 300 workers (100 women) must have:

- First-aid boxes (every 150 workers)
- Canteen (250+ workers)
- Rest room (150+ workers)
- Crèche (30+ women workers)

 **TIP:** Mnemonic — “150 First Aid & Rest; 250 Canteen; 30 Women Crèche; 500 Welfare Officer”

A.4 — Working Hours & Leave — Factories Act ★★★★★

Source: Chapter VI (Sections 51-66) and Chapter VIII (Section 79) of Factories Act, 1948.

WORKING HOURS OF ADULTS [Sections 51-56]:

Section 51 — Weekly Hours

- Maximum 48 hours per week
- No adult worker shall be required to work more

Section 52 — Weekly Holidays

- At least 1 day per week (usually Sunday)
- Substituted holiday if worked on weekly off

Section 54 — Daily Hours

- Maximum 9 hours per day
- Cannot exceed even with overtime

Section 55 — Intervals for Rest

- At least 30 minutes rest after 5 hours of continuous work
- Must be given mid-shift

Section 56 — Spread-Over

- Total spread-over including rest — **not more than 10.5 hours**

Section 57 — Night Shifts

- Between 10 PM and 5 AM

Section 59 — Extra Wages for Overtime

- If more than 9 hours/day or 48 hours/week
- **Double the ordinary rate of wages**
- Cannot routinely exceed 9 hours/day

Section 61 — Register of Workers

- All details of workers and their working hours maintained

Section 65-66 — Special Exemptions and Women Workers

- **Section 66:** No woman to work between **7 PM and 6 AM**
- State amendments may permit night shifts in IT/BPO with safeguards

WORKING HOURS OF YOUNG PERSONS [Sections 67-71]:

- **Section 71:** Maximum **4.5 hours per day** for young persons (14-18)

ANNUAL LEAVE WITH WAGES [Section 79]:

- **Adult:** 1 day leave for every **20 days worked**
- **Young person:** 1 day for every **15 days worked**
- **Maximum carry-forward:** 30 days (adult); 40 days (young)
- Leave encashment on discharge/dismissal
- Sundays count as weekly rest (paid)

Example:

- Adult working 240 days in a year earns: $240 \div 20 = 12$ **days paid leave**
- Young person working 150 days earns: $150 \div 15 = 10$ **days paid leave**

Overtime:

- Adult: If worked 10 hours (1 hour OT) → paid double for that 1 hour
- Maximum OT per quarter: 50 hours (standard)

A.5 — Hazardous Processes — Factories Act

Source: Chapter IV-A (Sections 41-A to 41-H) of Factories Act, 1948.

Background: Added by the **Factories (Amendment) Act, 1987** following the **Bhopal Gas Tragedy (1984)** — Union Carbide's methyl isocyanate (MIC) leak killed thousands.

Definition [Section 2(cb)]: "Hazardous process" means any process or activity in relation to an industry specified in the **First Schedule** where:

- Unless special care is taken, the raw materials used, or the by-products,

- waste or effluents generated give rise to
- **Material impairment to health** of persons engaged or
- **Damage to the general environment**

Key Provisions:

Section 41-A — Site Appraisal Committee

- For new factories with hazardous processes
- Committee examines site suitability BEFORE approval
- Includes Chief Inspector, representatives of various departments

Section 41-B — Compulsory Disclosure of Information

- Occupier must disclose to:
 - Workers — nature of hazards, precautions
 - Local authority — emergency plan
 - Authorities — details of hazardous substances

Section 41-C — Specific Responsibilities of Occupier

- **Maintain accurate records** of workers exposed to hazards
- **Appoint qualified persons** to supervise operations
- **Provide adequate medical facilities** for health monitoring
- **Emergency plans** — on-site and off-site

Section 41-D — Power of Central Government

- May appoint **Inquiry Committee** after major accident
- Report submitted to Central Government

Section 41-E — Emergency Standards

- Where standards not prescribed — Chief Inspector may prescribe

Section 41-F — Permissible Limits of Exposure

- Prescribed limits for chemicals, dust, noise, etc.

Section 41-G — Workers' Participation in Safety Management

- Workers have right to:
 - **Form safety committees**
 - Participate in safety planning
 - Access to safety information

Section 41-H — Right of Workers to Warn of Imminent Danger

- Worker who notices imminent danger can **warn other workers**
- Can **refuse to work** in imminently dangerous conditions
- Cannot be penalized for this

Examples of Hazardous Industries (First Schedule):

- Chemical industries
- Pesticide manufacturing
- Explosive factories

- Oil refineries
- Asbestos industries
- Battery manufacturing

 **Example:** After Bhopal gas tragedy, all chemical factories must now have:

- Emergency plans (Section 41-C)
- Disclose hazards to workers (Section 41-B)
- Site appraisal before setting up (Section 41-A)
- Workers' safety committees (Section 41-G)

A.6 — Employment of Women & Young Persons ★★★★★

Source: Chapters VI and VII of Factories Act, 1948.

Employment of Women [Sections 19, 22, 27, 42, 47, 48, 66]

Protective Provisions:

- **Section 19:** Separate toilets and urinals (mandatory)
- **Section 22:** Women **CANNOT** work on dangerous machinery in motion
- **Section 27:** Women **PROHIBITED** near cotton opener machines
- **Section 42:** Separate washing facilities
- **Section 47:** Rest room (150+ workers)
- **Section 48:** Crèche (30+ women workers)
- **Section 66:** Women **CANNOT** work between 7 PM and 6 AM

Exception under Section 66:

- State government may permit night work for women in:
 - IT/ITES companies (with safeguards — transport, escort)
 - Some industries with adequate protection
 - Women must give written consent

Employment of Young Persons [Sections 67-77]

Definitions:

- **Child:** Below 14 years
- **Adolescent:** 14-18 years
- **Young Person:** Adolescent (14-18)

Section 67 — No Child in Factory:

- **No child below 14** shall be employed in any factory
- Absolute prohibition

Section 68 — Certificate of Fitness:

- Every young person (14-18) must have a **Certificate of Fitness**
- Issued by certifying surgeon
- After medical examination

- Certifies fitness for factory work

Section 69 — Certificate of Fitness:

- Must be obtained before employment
- Renewed periodically

Section 70 — Working Hours for Young Persons:

- Same as adult (9 hours/day; 48 hours/week)
- But cannot work between **10 PM and 6 AM**

Section 71 — Limitations on Young Persons:

- Maximum **4.5 hours per day**
- Not two shifts
- Certificate of fitness must specify nature of work

Section 72 — Register of Child Workers:

- Maintained at factory

Section 73 — Hours of Work:

- Young person's hours must comply with Section 71

Example:

- A 16-year-old (adolescent) can work in a factory but:
 - Must have Certificate of Fitness
 - Max 4.5 hours per day
 - Cannot work after 10 PM
 - Cannot work on dangerous machinery (Section 23)

A.7 — Child Labour (Prohibition & Regulation) Act 1986



Full Name: Child Labour (Prohibition and Regulation) Act, 1986. Significantly amended in **2016**.

Definitions [Section 2]:

- **Child:** Person who has **NOT completed 14 years** of age
- **Adolescent:** Person who has completed **14 but NOT 18** years
- **Family:** Mother, father, brother, sister
- **Family enterprise:** Work where only family members are engaged

KEY PROVISIONS:

Section 3 — Prohibition of Employment of Children (Below 14)

- **NO child shall be employed** or permitted to work in **ANY** occupation or process
- **ABSOLUTE PROHIBITION**

Exceptions (2016 amendment):

- Child may **help family or family enterprise** (after school hours/vacations)
- **BUT NOT in any hazardous occupation**
- Child can work as **artist in audio-visual industry** (films, TV, advertisements, sports activities) — with safeguards
- **NOT in circuses**
- Must NOT affect school attendance

Section 3-A — Prohibition of Employment of Adolescents in Hazardous Occupations

- **Adolescents (14-18) PROHIBITED** from working in **hazardous occupations**
- Listed in the **Schedule** to the Act
- Examples: Mines, explosives, hazardous processes

Conditions for Adolescents in Non-Hazardous Work:

- Regulated hours (not more than prescribed)
- No work between 7 PM and 8 AM
- No double employment
- Health and safety rules

Penalties [Section 14] — Enhanced by 2016 Amendment

- **Employing a child (below 14):**
 - Imprisonment **6 months to 2 years**
 - Fine **Rs.20,000 to Rs.50,000**
 - Or both
- **Repeat offence:**
 - Imprisonment **1 to 3 years**
- **Parents/Guardians:**
 - First offence — **WARNING**
 - Repeat — Fine up to **Rs.10,000**
- **Employing adolescent in hazardous occupation:**
 - Same penalties as child

Child & Adolescent Labour Rehabilitation Fund [Sections 14-B, 14-C, 14-D]

- Created by **2016 amendment**
- Funded by fines collected from employers
- **Rs.15,000 per child** deposited in fund
- **State adds Rs.5,000 per child**
- Used for rehabilitation, education of rescued children

🔪 **Case: *M.C. Mehta v. State of Tamil Nadu (1996)*** — After Sivakasi fireworks tragedy, SC directed:

- Identification of child labour in all hazardous industries

- Rs.20,000 compensation from employer per child
- Government to provide alternate employment/Rs.5,000 deposit
- Education of rescued children

🔪 **Case:** *Bandhua Mukti Morcha v. Union of India (1984)* — Identification and rescue of bonded child labour.

📌 **Example:** A 10-year-old working in a fireworks factory (hazardous occupation) — ILLEGAL. Employer faces 6 months to 2 years imprisonment + Rs.20,000-50,000 fine.

💡 **TIP:** Mnemonic — “Below 14 = NOTHING; 14-18 = NOT HAZARDOUS”

A.8 — Rights of Child under Constitution ★★★★★

Constitutional Framework:

Children enjoy special protection under the Constitution of India. These protections derive from both **Fundamental Rights** and **Directive Principles**.

Fundamental Rights

Article 21 — Right to Life

- Includes right to education, dignity, development
- Extended by judicial interpretation to cover:
 - Education up to 14 years
 - Right to grow up in healthy environment
 - Protection from exploitation

Article 21-A — Right to Education [Added by 86th Amendment, 2002]

- **Free and compulsory education** for all children aged **6-14 years**
- Implemented through Right of Children to Free and Compulsory Education Act (RTE), 2009
- State’s obligation, not charity
- No fees, books, uniforms provided by school

Article 23 — Prohibition of Traffic in Human Beings and Forced Labour

- Trafficking of children is unconstitutional
- Bonded labour of children absolutely banned
- **Child trafficking** is a serious constitutional violation

Article 24 — Prohibition of Employment of Children in Factories

- **No child below 14** shall be employed in any:
 - Factory
 - Mine
 - **Hazardous employment**
- This is a **FUNDAMENTAL RIGHT** — directly enforceable

- *M.C. Mehta v. State of Tamil Nadu (1996)* — Article 24 violated in Sivakasi

Directive Principles (Part IV)

Article 39(e) — Health and Strength of Workers/Children

- State shall ensure:
 - Citizens are not forced by economic necessity to enter vocations unsuited to their age/strength
 - Health and strength of workers, men and women, and children are not abused

Article 39(f) — Protection of Children

- Children are given opportunities to develop in a healthy manner
- In conditions of **freedom and dignity**
- Childhood and youth protected against exploitation and moral and material abandonment

Article 45 — Free and Compulsory Education [Now Article 21-A after 86th Amendment]

- Original: Free education for children up to 14 years
- Now elevated to Fundamental Right under Article 21-A

Article 47 — Duty of the State

- Raise level of nutrition and standard of living
- Improvement of public health
- Includes child health

Legislation Implementing Constitutional Rights

- Child Labour (Prohibition & Regulation) Act, 1986 (with 2016 amendment)
- Right of Children to Free and Compulsory Education Act, 2009
- Juvenile Justice (Care and Protection of Children) Act, 2015
- POCSO Act, 2012 — Protection of Children from Sexual Offences
- Protection of Children from Sexual Offences Act, 2012
- Prohibition of Child Marriage Act, 2006
- Bonded Labour System (Abolition) Act, 1976

International Conventions

India ratified:

- UN Convention on Rights of Child (UNCRC), 1989 — 1992
- ILO Convention 138 — Minimum Age (ratified 2017)
- ILO Convention 182 — Worst Forms of Child Labour (ratified 2017)

Judicial Pronouncements

⚖️ **Case:** *M.C. Mehta v. State of Tamil Nadu (1996)* — Comprehensive directions for elimination of child labour in hazardous industries.

⚖️ **Case:** *Bandhua Mukti Morcha v. Union of India (1984)* — Rescue of bonded child labour; Article 23 violated.

⚖️ **Case:** *Unni Krishnan v. State of AP (1993)* — Right to education for children up to 14 is fundamental right under Article 21.

⚖️ **Case:** *People's Union for Democratic Rights v. Union of India (1982)* — Children in construction work = violation of Articles 23 and 24.

💡 **TIP:** Key Articles for Children — “21, 21-A, 23, 24, 39(e), 39(f), 45”

A.9 — Child Labour — 2016 Amendment ★★★★★

Background: The Child Labour (Prohibition and Regulation) Amendment Act, 2016 significantly strengthened the original 1986 Act in response to persistent child labour, ILO Convention ratification commitments, and the Right to Education Act, 2009.

Key Changes by 2016 Amendment:

1. Complete Prohibition Extended [Section 3]

- **Original 1986 Act:** Prohibited employment in **Schedule occupations/processes** only
- **2016 Amendment:** Prohibits employment in **ANY occupation or process** for children below 14
- Major expansion from partial to total prohibition

2. Regulation of Adolescent Labour [Section 3-A — NEW]

- **New provision** for adolescents (14-18)
- Prohibited from **hazardous occupations** listed in Schedule
- Earlier, adolescents could work in many regulated occupations
- Now restricted to non-hazardous only

3. Revised Schedule

- **New hazardous list** for adolescents
- Mines, inflammable substances, explosives, hazardous processes

4. Family Exception [Section 3, Proviso]

- Child can help family or family enterprise after school
- But **NOT in hazardous occupations**
- Must not affect school attendance
- This protects traditional family livelihoods

5. Audio-Visual Exception

- Child can work as **artist in audio-visual entertainment**

- Films, TV, sports activities
- Subject to safeguards
- **NOT in circuses**
- Must not affect school

6. Enhanced Penalties [Section 14]

- **Child labour (below 14):**
 - First offence: **6 months to 2 years** (from maximum 3 months previously)
 - Fine: **Rs.20,000 to Rs.50,000** (from Rs.10,000-20,000)
 - Repeat: **1-3 years** imprisonment
- **Adolescent in hazardous:**
 - Same as child
- **Parents/Guardians:**
 - Warning for first offence
 - Fine up to Rs.10,000 for repeat

7. Rehabilitation Fund [Sections 14-B, 14-C, 14-D — NEW]

- District-wise funds for rehabilitating rescued children
- Financed from employer fines
- Rs.15,000 per child (State adds Rs.5,000)
- Used for:
 - Education
 - Vocational training
 - Medical care
 - Nutrition

8. Enforcement Authorities

- **District Magistrate** — overall responsibility
- **Inspectors** — investigation
- **Police** — rescue operations

Alignment with Other Laws

- Consistent with **Right to Education Act, 2009** (6-14 years)
- Consistent with **Juvenile Justice Act, 2015**
- Implements **ILO Conventions 138 and 182**

Example of Change:

- **Pre-2016:** Child below 14 only prohibited in listed Schedule occupations (about 18 occupations)
- **Post-2016:** Child below 14 prohibited in ALL occupations everywhere
- Massive improvement in child protection

 **TIP:** Remember — “**2016 = Full prohibition (below 14) + Adolescent hazardous restriction (14-18)**”

A.10 — Equal Remuneration Act 1976 ★★★★★

Full Name: Equal Remuneration Act, 1976.

Objective: To provide for **equal remuneration** to men and women workers for **SAME** or **SIMILAR WORK** and prevent discrimination in recruitment.

Now Consolidated in: Code on Wages, 2019 (Section 3) — **Equal Remuneration Act, 1976 is repealed.**

Constitutional Basis:

- **Article 14** — Equality before law
- **Article 15(1)** — Prohibition of discrimination on grounds of sex
- **Article 16** — Equal opportunity in public employment
- **Article 39(d)** — Equal pay for equal work for men and women (DPSP)
- **Article 42** — Just and humane conditions of work

Key Provisions

Section 1 — Application:

- Extended to whole of India
- Applied gradually to different establishments by notification

Section 2 — Definitions:

- **“Remuneration”** — wages, salary, allowances, and other payments in cash or kind
- **“Same work or work of a similar nature”** — work requiring **same skill, effort, responsibility** under **similar working conditions**

Section 3 — Act Overrides Inconsistent Provisions:

- The Act overrides any contract or award that provides for less favourable remuneration to women

Section 4 — Duty of Employer to Pay Equal Remuneration:

- No employer shall pay to any worker at a rate **less than** that paid to a worker of the other sex
- For **SAME WORK** or **WORK OF SIMILAR NATURE**
- No reduction of any worker’s wages to comply with this duty

Section 5 — No Discrimination in Recruitment:

- No employer shall:
 - Make any discrimination against women in recruitment
 - In promotion, training, or transfer
 - For same or similar work
 - Exception: Where employment of women is prohibited/restricted by law

Section 6 — Advisory Committee:

- Constituted to increase employment opportunities for women
- Half the members must be **women**
- Examines and advises on women's employment policies

Sections 7-9 — Authorities and Procedure:

- Appropriate government may appoint authorities
- Authority hears complaints
- Makes orders for payment of arrears
- Appeal within 30 days

Section 10 — Penalties:

- Failure to maintain records — fine **Rs.10,000 to Rs.20,000**
- Recruitment discrimination — fine **Rs.10,000 to Rs.20,000** OR imprisonment **3 months to 1 year**
- Subsequent offences — imprisonment up to **2 years**

Current Status under Code on Wages, 2019:

- Equal Remuneration Act, 1976 repealed and consolidated
- **Section 3 of Code on Wages, 2019** — No employer shall pay less to any employee on ground of **gender** (male, female, transgender)
- Extended beyond male-female binary — includes **transgender persons**
- Broader coverage than 1976 Act

A.11 — Equal Pay for Equal Work ★★★★★

Concept: "Equal Pay for Equal Work" means men and women performing **SAME** or **SIMILAR** work must receive the **same wages**. It is a principle of **DISTRIBUTIVE JUSTICE** — work of equal value must be remunerated equally, regardless of gender.

Three Components:

1. Same wages for **SAME WORK**
2. Same wages for **WORK OF SIMILAR NATURE**
3. No discrimination in **recruitment, training, promotion, transfer** based on gender

Constitutional Basis:

- **Article 14** — Equality before law
- **Article 15(1)** — No discrimination on sex
- **Article 16** — Equal opportunity in employment
- **Article 39(d)** — Equal pay for equal work (DPSP) — explicitly mentioned
- **Article 42** — Just and humane conditions
- **Article 43** — Living wage for all

Not Initially a Fundamental Right:

- Article 39(d) is a **DPSP** — not directly enforceable
- But courts have elevated it through Article 14 and 16
- *Randhir Singh v. Union of India (1982)* — SC held equal pay for equal work is implicit in Articles 14 and 16

Judicial Evolution:

⚖️ **Case:** *Randhir Singh v. Union of India (1982)* — SC held “equal pay for equal work” is not merely a slogan but a constitutional goal; implicit in Articles 14, 16, 39(d).

⚖️ **Case:** *Mackinnon Mackenzie & Co. v. Audrey D’Costa (1987)* — Women stenographers entitled to same pay as male stenographers; “same work” broadly construed.

⚖️ **Case:** *State of Punjab v. Jagjit Singh (2017)* — Daily wage workers doing same work as regular employees entitled to equal wages.

⚖️ **Case:** *Daily Rated Casual Labour v. Union of India (1988)* — Equal pay for equal work judicially enforceable.

⚖️ **Case:** *Air India v. Nergesh Meerza (1981)* — Discriminatory conditions for air hostesses struck down.

⚖️ **Case:** *PUDR v. Union of India (1982)* — Non-payment of minimum wage to women = forced labour.

International Recognition:

- **ILO Convention 100 (1951)** — Equal Remuneration Convention (India ratified)
- **CEDAW (1979)** — Convention on Elimination of Discrimination Against Women
- **UDHR Article 23** — Equal pay for equal work

Current Status:

- **Code on Wages, 2019 Section 3** — No discrimination on gender
- Covers **male, female, transgender**
- Applies to recruitment, wages, and conditions
- Inspectors enforce compliance
- Penalties up to Rs.50,000

A.12 — Factories Act 1948 — Definition & Applicability ★★★★★

Full Name: Factories Act, 1948. Came into force: **1 April 1949.**

Objectives:

- Ensure health, safety, and welfare of workers
- Regulate working hours

- Prevent exploitation
- Protect women and young workers
- Establish inspection machinery

Definition of Factory [Section 2(m)]:

Premises where:

- **10 or more workers** work with the **aid of power** (electricity, steam, etc.),
OR
- **20 or more workers** work **WITHOUT power**
- **Manufacturing process** is carried on
- Includes premises controlled by same person where different parts of same manufacturing process carried on

Exclusions:

- Mines
- Railway running sheds
- Hotels and restaurants
- Seasonal factories (some)

Manufacturing Process [Section 2(k)]:

Any process for:

- Making, altering, repairing, ornamenting, finishing, packing, oiling, washing, cleaning, breaking up, demolishing, or adapting any article for sale
- Generating, transforming, transmitting power
- Printing by letter press, lithography, photogravure, etc.
- Constructing, reconstructing, repairing ships/vessels
- Preservation of articles in cold storage

Definitions:

- **Worker [Section 2(l)]:** Any person (including apprentice) employed in manufacturing process; cleaning of machinery/premises; related activities
- **Occupier [Section 2(n)]:** Person who has ultimate control over factory affairs; in partnership — every partner
- **Adult:** Above 18 years
- **Young Person:** 14-18 years
- **Child:** Below 14 years

Applicability:

- Applies to ALL factories as defined above
- Specific provisions may apply based on worker count
- Central Government makes rules for certain industries
- State Governments make rules for most factories

Inspector [Section 8]:

- **Inspector of Factories** — appointed by State Government
- Powers: Enter and inspect factories; take samples; examine records; search with warrant
- **District Magistrate** is also Inspector (ex-officio)

Certification and Registration:

- New factory must obtain **approval of plans** before construction
- **Site approval** from Chief Inspector
- **Registration and licensing** for each factory
- Annual renewal of license

Example:

- Garment factory with 15 workers using electric sewing machines → **FACTORY** (10+ with power)
- Handloom weaving with 15 workers, no power → **NOT a factory** (needs 20+ without power)
- Same weaving with 25 workers → **FACTORY** (20+ without power)

PART B — LONG ESSAYS (15 marks each)

B.1 — Factories Act 1948 — Health, Safety & Welfare Provisions



 **STRUCTURE:** Introduction → Objectives → Definition → Health → Safety → Welfare → Working Hours → Young Persons → Conclusion

Introduction

The **Factories Act, 1948** is the **principal legislation** regulating working conditions in factories in India. It consolidated and amended the law relating to labour in factories. Its core concern is the **HEALTH, SAFETY, and WELFARE** of workers — implementing the constitutional mandate under **Articles 39, 42, and 43**. The Act provides a comprehensive code of conduct for factories to protect workers from occupational hazards, regulate working hours, and provide welfare amenities. It came into force on **1 April 1949** and has been amended several times, most notably in **1987** after the Bhopal Gas Tragedy.

Objectives of the Factories Act

- Ensure **health and safety** of workers in factories
- Regulate **working hours** and prevent exploitation
- Provide **welfare amenities** to workers
- **Protect women and young workers** from hazardous work
- Establish an **inspection machinery** for compliance

Definition of Factory [Section 2(m)]

- Premises where **10+ workers** work **with power**, OR
- **20+ workers** work **without power**
- Manufacturing process is carried on
- Excludes mines, railway running sheds, hotels

CHAPTER III — HEALTH [Sections 11-20]

Health provisions aim at maintaining a healthy physical environment in factories.

Section 11 — Cleanliness:

- Factory to be kept clean, free from effluvia
- Floors swept and cleaned daily
- Walls, ceilings painted every 5 years
- Records maintained

Section 12 — Disposal of Wastes and Effluents:

- Effective arrangements for disposal from manufacturing process

Section 13 — Ventilation and Temperature:

- Adequate ventilation by circulation of fresh air
- Reasonable temperature for comfort
- Excessively hot processes — insulated or separated

Section 14 — Dust and Fumes:

- Effective measures to prevent inhalation

Section 15 — Artificial Humidification:

- Where humidity is artificially increased — regulated; pure water only

Section 16 — Overcrowding:

- Minimum **14.2 cubic metres** of space per worker

Section 17 — Lighting:

- Sufficient and suitable lighting — natural or artificial
- Prevention of glare and shadows

Section 18 — Drinking Water:

- Wholesome drinking water at convenient places
- Marked “DRINKING WATER”
- **Cool water** where **250+ workers** (hot weather)

Section 19 — Latrines and Urinals:

- Adequate, clean, well-ventilated
- **Separate for males and females** (mandatory)

Section 20 — Spittoons:

- At convenient places; clean and hygienic

CHAPTER IV — SAFETY [Sections 21-41]

Safety provisions protect workers from accidents caused by machinery, fire, and dangerous processes.

Section 21 — Fencing of Machinery:

- Every moving part of prime mover, transmission machinery, dangerous parts must be **securely fenced**

Section 22 — Work on Machinery in Motion:

- Only by **specially trained adult males** with notified precautions
- Women and young persons NOT allowed

Section 23 — Dangerous Machines:

- **No young person** to work on dangerous machine

Section 24 — Striking Gear:

- Devices to cut off power from prime movers

Section 27 — Cotton Openers:

- **No women or children** near cotton openers

Section 28 — Hoists and Lifts:

- Good mechanical construction, sound material
- Tested every **6 months**
- Maximum load marked

Section 32 — Floors, Stairs, Means of Access:

- Soundly constructed and maintained

Section 33 — Pits, Sumps, Openings:

- Securely covered or fenced

Section 34 — Excessive Weights:

- No worker to carry loads beyond safe limits

Section 35 — Protection of Eyes:

- Goggles or screens where risk of eye injury

Section 36 — Dangerous Fumes:

- Entry into confined spaces only with breathing apparatus and written permit

Section 37 — Explosive Dust/Gas:

- Precautions against explosion risk

Section 38 — Precautions against Fire:

- Means of escape in fire
- Fire alarms, fire-fighting equipment
- Workers trained in fire drills

Section 40-A — Safety Officers:

- Mandatory where **1,000+ workers** or hazardous processes

Section 41 — Power of Inspector:

- To order additional safety measures

CHAPTER IV-A — HAZARDOUS PROCESSES [Sections 41-A to 41-H]

Added by **1987 Amendment** after Bhopal Gas Tragedy:

- **Section 41-A:** Site Appraisal Committee for new hazardous factories
- **Section 41-B:** Compulsory disclosure of hazards to workers and authorities
- **Section 41-C:** Occupier's responsibilities — records, emergency plans, medical facilities
- **Section 41-D:** Inquiry Committee after major accident
- **Section 41-G:** Workers' participation in safety management
- **Section 41-H:** Workers' right to warn of imminent danger and refuse dangerous work

CHAPTER V — WELFARE [Sections 42-50]

Welfare provisions ensure amenities for workers' comfort and well-being.

Section 42 — Washing Facilities:

- Adequate, separate for men and women

Section 43 — Storing and Drying Clothing:

- Where special clothing worn

Section 44 — Sitting Facilities:

- For workers obliged to work standing

Section 45 — First-Aid Appliances:

- **1 box per 150 workers**
- Ambulance room where **500+ workers**

Section 46 — Canteens:

- Mandatory where **250+ workers**

- Nutritious food at reasonable prices

Section 47 — Shelters, Rest Rooms, Lunch Rooms:

- Where 150+ workers
- Drinking water

Section 48 — Crèches:

- Where 30+ women workers
- Children below 6 years
- Trained women in charge

Section 49 — Welfare Officers:

- Where 500+ workers

CHAPTER VI — WORKING HOURS OF ADULTS [Sections 51-66]

Section 51: Weekly hours — **MAX 48**

Section 52: Weekly holiday — **at least 1 day/week**

Section 54: Daily hours — **MAX 9**

Section 55: Intervals — **30 minutes** after 5 hours

Section 56: Spread-over — **MAX 10.5 hours** including rest

Section 59: Overtime — **DOUBLE** the ordinary rate

Section 66: No women between **7 PM and 6 AM**

CHAPTER VII — YOUNG PERSONS [Sections 67-77]

Section 67: No child below 14 in factory

Section 68: Certificate of Fitness for young persons (14-18)

Section 71: Maximum **4.5 hours/day** for young persons

CHAPTER VIII — ANNUAL LEAVE WITH WAGES [Section 79]

- **Adult:** 1 day per 20 days worked
- **Young:** 1 day per 15 days worked
- **Carry-forward:** 30 days (adult); 40 days (young)

PENALTIES [Sections 92-106]

- **Section 92 — General penalty:** Imprisonment up to **2 years** OR fine up to Rs.1 lakh, or both
- **Section 96-A — Hazardous processes violation:** 7 years imprisonment + fine Rs.2 lakh
- **Section 105:** Cognizance of offences by court (magistrate)

Case Laws

⚖️ **Case:** *M.C. Mehta v. Union of India (1986)* — Oleum gas leak case; SC laid down **Absolute Liability** principle for hazardous industries — no exceptions, unlike strict liability.

⚖️ **Case:** *Ravi Shankar Sharma v. State of Rajasthan (1993)* — Strict compliance with safety provisions mandatory.

⚖️ **Case:** *State of UP v. Ram Sajiwan (1989)* — Welfare provisions to be liberally construed in favour of workers.

⚖️ **Case:** *Indian Council for Enviro-Legal Action v. Union of India (1996)* — Chemical factories' duty to prevent pollution; hazardous process provisions applied.

Conclusion

The Factories Act, 1948 is the **cornerstone of industrial workplace law** in India. Through its comprehensive provisions on health (Sections 11-20), safety (Sections 21-41), welfare (Sections 42-50), working hours (Sections 51-66), and special protections for women and young persons, it ensures **dignity and protection at the workplace**. The **1987 amendment** after Bhopal added crucial hazardous process provisions. The **Occupational Safety, Health and Working Conditions Code, 2020** has now consolidated the Factories Act with other laws, but the basic protections continue. Effective enforcement remains the biggest challenge — ensuring that the constitutional vision under **Articles 39, 42, and 43** translates into real workplace safety and dignity for India's millions of factory workers.

B.2 — Child Labour (Prohibition & Regulation) Act 1986



Introduction

Child labour is one of the gravest violations of human rights — depriving children of education, dignity, and a childhood. The **Child Labour (Prohibition and Regulation) Act, 1986** — significantly amended in **2016** — provides a legal framework to **PROHIBIT child labour** and **REGULATE adolescent labour**. It implements constitutional mandates under **Articles 21-A, 23, 24, and 39**, alongside international obligations under the **UN Convention on Rights of the Child**.

Constitutional Backing

- **Article 21-A** — Free and compulsory education for children 6-14 years
- **Article 23** — Prohibition of human trafficking and forced labour
- **Article 24** — No child below 14 in factories, mines, or hazardous employment
- **Article 39(e)** — State to ensure children's health is not abused
- **Article 39(f)** — Children to be given opportunities to develop in dignity

- **Article 45** — Early childhood care and education

Definitions [Section 2]

- **Child:** Person who has NOT completed **14 years** of age
- **Adolescent:** Person who has completed **14 but NOT 18** years
- **Family:** Mother, father, brother, sister
- **Family enterprise:** Work where only family members of child are engaged

KEY PROVISIONS OF THE ACT

1. Prohibition of Employment of Children [Section 3] (As Amended in 2016)

- **NO child shall be employed** or permitted to work in **ANY occupation or process**
- This is an **ABSOLUTE PROHIBITION**
- No Schedule of prohibited occupations — ALL are prohibited

Exceptions (2016 Amendment):

- Child may **help family or family enterprise** (after school hours/vacations)
 - **BUT NOT** in any hazardous occupation
 - Must not affect school attendance
- Child can work as **artist in audio-visual entertainment** industry (films, TV, sports activities)
 - Subject to safeguards
 - **NOT in circuses**
 - Must not affect school

2. Prohibition of Adolescent Labour in Hazardous Occupations [Section 3-A]

- **Adolescents (14-18) PROHIBITED** from working in **hazardous occupations** listed in Schedule
- Schedule examples:
 - Mines
 - Inflammable substances and explosives
 - Hazardous processes (as under Factories Act)

Adolescents CAN work in non-hazardous occupations subject to:

- Regulated hours
- No work between 7 PM and 8 AM
- No double employment
- Health and safety provisions

3. Regulation of Conditions for Adolescent Labour [Sections 6-13]

- Working hours not exceeding prescribed limits
- No work during stretches without intervals
- Weekly holiday
- No work between 7 PM and 8 AM

- No double employment
- Health and safety rules apply

4. Health and Safety Provisions [Section 13]

- Appropriate government may make rules regarding:
 - Cleanliness, drinking water, latrines
 - Disposal of wastes
 - Lighting and ventilation
 - Safety from fire
 - First aid
 - Maintenance of registers

5. Penalties [Section 14] (Enhanced by 2016 Amendment)

- **Employing a child (below 14):**
 - Imprisonment: **6 months to 2 years**
 - Fine: **Rs.20,000 to Rs.50,000**
 - Repeat: Imprisonment **1-3 years**
- **Employing adolescent in hazardous occupation:**
 - Same penalties as for child
- **Parents/Guardians:**
 - First offence — Warning
 - Repeat — Fine up to Rs.10,000

6. Child & Adolescent Labour Rehabilitation Fund [Sections 14-B to 14-D] (NEW by 2016)

- District-level funds
- Financed by employer fines
- **Rs.15,000 per child** (State adds Rs.5,000)
- Used for:
 - Education
 - Vocational training
 - Medical care

7. Enforcement Authorities

- **District Magistrate** — overall responsibility
- **Inspectors** — investigation
- **Police** — rescue operations
- **Child Welfare Committees** — rehabilitation

Evolution — How Law Changed

Period	Status
Pre-1986	Piecemeal laws; no comprehensive act
1986-2016	Prohibited only in 18 specific occupations/processes
Post-2016	Prohibited in ALL occupations for

Period	Status
	below 14

Supporting Legislations

- **Right to Education Act, 2009** — Free education 6-14
- **Juvenile Justice (Care and Protection) Act, 2015**
- **Bonded Labour System (Abolition) Act, 1976**
- **Factories Act, 1948** — Section 67 (no child below 14)
- **Mines Act, 1952** — No child in mines

ILO Conventions

- **Convention 138 (1973)** — Minimum Age for Employment (India ratified 2017)
- **Convention 182 (1999)** — Worst Forms of Child Labour (India ratified 2017)

National Policy on Child Labour, 1987

Three-pronged approach:

1. **Legislative:** Strict enforcement
2. **Welfare:** Education, nutrition, health
3. **Project-based:** Focus on hazardous industries

Sivakasi — Case Study

- **M.C. Mehta v. State of Tamil Nadu (1996)**
- Thousands of children working in fireworks factories in Sivakasi, Tamil Nadu
- SC observed violation of Article 24
- Directed:
 - **Rs.20,000 from each employer** per child employed
 - **Rehabilitation Fund** created
 - **Adult family member** to be offered job, OR Rs.5,000 deposited in fund
 - **Children to be sent to school** — compulsory education
 - **Survey** of all hazardous industries
- This case transformed child labour enforcement in India

Challenges in Implementation

- Vast unorganised sector — difficult to monitor
- Poverty drives families to put children to work
- Lack of awareness
- Weak enforcement infrastructure
- Inadequate rehabilitation facilities
- Resistance from employers

Case Laws

🏛️ **Case:** *M.C. Mehta v. State of Tamil Nadu (1996)* — Comprehensive

directions for elimination of child labour; Sivakasi.

🏛️ **Case:** *Bandhua Mukti Morcha v. Union of India (1984)* — Rescue of bonded child labour; landmark PIL.

🏛️ **Case:** *People's Union for Democratic Rights v. Union of India (1982)* — Children in construction = forced labour under Article 23.

🏛️ **Case:** *Unni Krishnan v. State of AP (1993)* — Right to education for children under Article 21.

🏛️ **Case:** *Sanjit Roy v. State of Rajasthan (1983)* — Even relief workers entitled to minimum wages; poor cannot be exploited.

Conclusion

The Child Labour (Prohibition and Regulation) Act, 1986 (as amended in **2016**) represents India's commitment to ending child labour. The total prohibition for children below 14, restrictions on adolescents in hazardous work, enhanced penalties, and the Rehabilitation Fund are positive steps. However, the challenge of **implementation** in the vast unorganised sector remains enormous. Sustained effort combining **legal action, free compulsory education, poverty alleviation, and social awareness** is required to fulfill the constitutional promise under **Articles 21-A, 23, 24, and 39(f)** — a dignified childhood for every Indian child.

B.3 — Equal Pay for Equal Work + Equal Remuneration Act 1976



Introduction

"Equal Pay for Equal Work" is a **constitutional and statutory mandate** aimed at eliminating gender-based wage discrimination. It recognises that work of equal value must be remunerated equally, regardless of gender. In India, where women historically earn less than men for similar work, this principle is a powerful tool for **gender justice and economic empowerment**. The **Equal Remuneration Act, 1976** was the primary statute; it is now consolidated into the **Code on Wages, 2019 (Section 3)**.

Meaning and Concept

"Equal Pay for Equal Work" means men and women performing **SAME** or **SIMILAR** work must receive the **same wages**.

Three dimensions:

- Same wages for **SAME WORK**
- Same wages for **WORK OF SIMILAR NATURE** (same skill, effort, responsibility)
- No discrimination in **recruitment, training, promotion, transfer** on gender grounds

Constitutional Basis

- **Article 14:** Equality before law — no differential treatment without reasonable classification
- **Article 15(1):** No discrimination by State on ground of sex
- **Article 16:** Equal opportunity in matters of public employment
- **Article 39(d):** “There is equal pay for equal work for both men and women” — DPSP
- **Article 42:** Just and humane conditions of work
- **Article 43:** Living wage for all workers

“Equal Pay for Equal Work” — Jurisprudential Evolution

Stage 1: DPSP (Not Enforceable Directly)

- Article 39(d) is a Directive Principle
- Not directly enforceable in court
- But provides guidance to legislature and executive

Stage 2: Judicial Elevation to Near-Fundamental Right

⚖️ **Case:** *Randhir Singh v. Union of India (1982)* — SC held that “equal pay for equal work” though not expressly guaranteed, is **implicit in Articles 14 and 16 of the Constitution**. Drivers in Central Police Force doing same work as those in CPWD entitled to same pay.

⚖️ **Case:** *Daily Rated Casual Labour v. Union of India (1988)* — “Equal pay for equal work” is not a mere slogan but a **justiciable right** implicit in Articles 14, 16, and 39(d).

⚖️ **Case:** *State of Punjab v. Jagjit Singh (2017)* — SC held daily wage and contractual workers doing **same work as regular employees** are entitled to equal wages. Work cannot be measured differently based on employment status.

Stage 3: Statutory Right

- Equal Remuneration Act, 1976 — made it statutory
- Code on Wages, 2019 — consolidated and expanded

Equal Remuneration Act, 1976 — Salient Features

Application

- Extended to whole of India
- Applied to different establishments through notification
- Wide coverage: factories, shops, establishments, public sector

Definition of Remuneration

- Wages, salary, allowances
- Any other payment in cash or kind
- Inclusive definition to prevent evasion

Section 4 — Duty to Pay Equal Remuneration

- **No employer** shall pay to any worker, at rates less favourable than those at which remuneration is paid to another worker employed for **same work or work of similar nature**
- Applies to **all workers** — male, female
- **No reduction** of any worker's wages to achieve parity

Section 5 — No Discrimination in Recruitment

- No employer shall discriminate against women in:
 - Recruitment
 - Training
 - Promotion
 - Transfer
- For same/similar work
- Exception: Where women's employment is specifically prohibited by law

Section 6 — Advisory Committee

- Constituted to increase employment opportunities for women
- **Half the members must be women**
- Examines and advises on women's employment

Enforcement

- Appropriate government appoints authorities
- Complaints heard
- Arrears ordered
- Appeal within 30 days

Penalties [Section 10]

- Maintenance of records failure: Fine Rs.10,000 to Rs.20,000
- Discrimination in recruitment: Fine Rs.10,000-20,000 OR imprisonment 3 months to 1 year
- Subsequent: Imprisonment up to 2 years

Code on Wages, 2019 — Section 3 (Current Law)

The Equal Remuneration Act, 1976 is now **REPEALED** and consolidated into Code on Wages, 2019.

Section 3 of Code on Wages provides:

- No employer shall pay any employee at a rate **less than** that paid to an employee of another gender
- For **SAME WORK** or **WORK OF SIMILAR NATURE**
- No discrimination in recruitment
- Covers **male, female, AND TRANSGENDER** persons
- Inspectors enforce compliance
- Penalties up to Rs.50,000

Expansion beyond 1976 Act:

- 1976 Act: male vs. female only
- Code 2019: male, female, transgender — **broadier protection**

Judicial Pronouncements on Equal Pay

⚖️ **Case:** *Randhir Singh v. Union of India (1982)* — Equal pay for equal work is implicit in Articles 14 and 16.

⚖️ **Case:** *Mackinnon Mackenzie & Co. v. Audrey D'Costa (1987)* — Women stenographers entitled to same pay as male stenographers doing same work.

⚖️ **Case:** *State of Punjab v. Jagjit Singh (2017)* — Daily wagers doing same work as regular employees entitled to equal wages.

⚖️ **Case:** *Air India v. Nergesh Meerza (1981)* — Discriminatory service conditions for air hostesses (pregnancy-based termination, early retirement) struck down as unconstitutional.

⚖️ **Case:** *PUDR v. Union of India (1982)* — Non-payment of minimum wage to women construction workers = forced labour.

⚖️ **Case:** *Daily Rated Casual Labour v. Union of India (1988)* — Equal pay principle judicially enforceable.

⚖️ **Case:** *Kishori Mohanlal Bakshi v. Union of India (1962)* — Employment discrimination basis challenged under Article 16.

Gender Wage Gap in India — Reality

- Women earn approximately **23-30% less** than men for similar work
- Worse in unorganised sector (50%+ gap)
- PLFS data consistently shows this gap
- Lower representation in high-pay sectors
- Glass ceiling in promotions

Role of Equal Pay in Bridging Gender Inequalities

1. Economic Empowerment

- Equal wages = financial independence for women
- Higher household income
- Women reinvest 90% of income in family
- Children's education, nutrition improve

2. Recognition of Women's Work

- Moves away from historical undervaluation
- Same skill must mean same pay

3. Social Change

- Alters power dynamics in family and society
- Income-earning women have greater decision-making power
- Reduces domestic violence correlation with economic dependence

4. International Compliance

- India signatory to ILO Convention 100 (Equal Remuneration, 1951)
- CEDAW (1979) — articles on equal pay
- UDHR Article 23 — right to equal pay

5. Constitutional Vision

- Implementation of DPSP under Article 39(d)
- Social justice mandate
- Goal of substantive equality

Challenges in Implementation

- Unorganised sector — weak enforcement
- Lack of awareness
- Employers using alternate designations to justify pay difference
- Difficulty proving “same work”
- Underrepresentation of women in high-paying jobs
- Domestic work unpaid/underpaid

Recommendations

- **Wage transparency:** Mandatory pay disclosure for similar roles
- **Equal pay audits:** Large establishments to report
- **Awareness campaigns:** Workers to know rights
- **Strengthened enforcement:** Inspector-cum-Facilitator under Code on Wages
- **Crèche and childcare:** Enable women’s career progression
- **Extend to gig workers:** Modern workforce covered

Conclusion

“Equal Pay for Equal Work” is more than a wage policy — it is a **statement of constitutional equality** and a means to economic justice. From a Directive Principle in 1950 to a justiciable right today (through judicial interpretation of Articles 14, 16, 39(d)), and now a statutory right under **Code on Wages, 2019 (Section 3)**, it has come a long way. The inclusion of **transgender persons** in the Code’s coverage marks a significant step. Yet, the persistent gender wage gap shows that law alone is insufficient — strong implementation, social awareness, and women’s empowerment programs must work together to truly bridge gender inequalities in India.

B.4 — Rights of Child under Indian Constitution ★★★★★

Introduction

Children are among the most vulnerable members of society. The **Constitution of India** recognises this vulnerability and provides **special protections** for children — both as **Fundamental Rights** directly enforceable in court, and as **Directive Principles** guiding State policy. India’s child rights framework has been further strengthened by international conventions, landmark judicial

decisions, and comprehensive legislation. This essay examines the constitutional rights of children, their judicial interpretation, and legislative implementation.

Who is a “Child”?

- **Factories Act, 1948:** Below 14 years
- **Child Labour Act, 1986 (as amended 2016):** Below 14 years
- **Right to Education Act, 2009:** 6-14 years
- **POCSO Act, 2012:** Below 18 years
- **Juvenile Justice Act, 2015:** Below 18 years
- **UN Convention on Rights of Child (UNCRC):** Below 18 years

For most constitutional purposes: below 14 years; for full protection: below 18 years.

FUNDAMENTAL RIGHTS FOR CHILDREN

1. Article 21 — Right to Life and Personal Liberty

Constitutional text: “No person shall be deprived of his life or personal liberty except according to procedure established by law.”

Judicial Expansion:

- SC expanded “life” to include **right to live with dignity**
- Includes **right to education** (Unni Krishnan, 1993)
- Includes **right to health**
- Includes **right to a clean environment**
- Includes protection from exploitation

 **Application to Children:** A child who is denied education, employed in hazardous work, or subjected to abuse is deprived of their right to life with dignity under Article 21.

2. Article 21-A — Right to Education

Added by: 86th Constitutional Amendment Act, 2002.

Content: “The State shall provide **free and compulsory education** to all children of the age of **6 to 14 years** in such manner as the State may, by law, determine.”

Implemented by: Right of Children to Free and Compulsory Education Act (RTE), 2009.

Key aspects:

- **Free** — no fees, no hidden charges; books, uniforms provided
- **Compulsory** — State’s duty, not charity; State ensures enrolment and attendance
- Age group: 6-14 years (Class I to VIII)
- Neighbourhood schools must admit children

- **25% reservation** in private schools for EWS/disadvantaged children
- No child to be expelled or detained till elementary education

⚖️ **Case:** *Society for Un-Aided Private Schools of Rajasthan v. Union of India* (2012) — 25% reservation in private schools upheld as constitutional.

3. Article 23 — Prohibition of Traffic in Human Beings and Forced Labour

Content: Traffic in human beings and begar and other similar forms of forced labour are prohibited.

Application to Children:

- **Child trafficking** is a direct violation of Article 23
- **Bonded child labour** — forced labour for debt — violates Article 23
- Any work extracted from children without adequate remuneration is “forced labour”
- Children in domestic servitude, brick kilns, agriculture — if unpaid or underpaid = violation

⚖️ **Case:** *People’s Union for Democratic Rights v. Union of India* (1982) — Children working in construction for Asian Games without minimum wages = violation of Article 23.

4. Article 24 — Prohibition of Employment of Children in Factories

Content: “No child below the age of **14 years** shall be employed to work in any **factory or mine** or engaged in any other **hazardous employment**.”

This is a **FUNDAMENTAL RIGHT** — directly enforceable.

Scope:

- Factory (as defined in Factories Act)
- Mine (as defined in Mines Act)
- **Any hazardous employment** — broadly construed by courts
- Fireworks, bidi rolling, carpet weaving, chemical factories — all covered

⚖️ **Case:** *M.C. Mehta v. State of Tamil Nadu* (1996) — Children in Sivakasi fireworks factories; SC held Article 24 violated; comprehensive directions given.

DIRECTIVE PRINCIPLES FOR CHILDREN

Article 39(e):

“The State shall, in particular, direct its policy towards securing that the health and strength of workers, men and women, and the tender age of children are not abused and that citizens are not forced by economic necessity to enter avocations unsuited to their age or strength.”

Key words: “tender age of children”, “not abused”, “not forced by economic necessity.”

Application: This mandates that no child be forced to work (even by poverty) in jobs unsuitable for their age.

Article 39(f):

“Children are given opportunities and facilities to develop in a healthy manner and in conditions of freedom and dignity and that childhood and youth are protected against exploitation and against moral and material abandonment.”

Key aspects:

- **Opportunities to develop** — education, play, health
- **Freedom and dignity**
- Protection against **exploitation** — economic, sexual, emotional
- Protection against **moral abandonment** — neglect
- Protection against **material abandonment** — poverty leading to neglect

Article 45 (Pre-86th Amendment):

- Originally: Free and compulsory education for children up to 14 years within 10 years of Constitution
- Post-86th Amendment: Now moved to Article 21-A as Fundamental Right
- New Article 45: “The State shall endeavour to provide early childhood care and education for all children until they complete the age of six years.”

Article 47:

- Raise level of nutrition and standard of living
- Improvement of public health
- Includes child health and nutrition

IMPLEMENTING LEGISLATION

1. Child Labour (Prohibition and Regulation) Act, 1986 (Amended 2016)

- Child below 14 — complete prohibition
- Adolescent 14-18 — no hazardous work
- Penalties, rehabilitation fund

2. Right of Children to Free and Compulsory Education Act (RTE), 2009

- Free compulsory education 6-14
- Neighbourhood schools
- 25% seats for EWS in private schools
- No detention/expulsion

3. Juvenile Justice (Care and Protection of Children) Act, 2015

- Child in conflict with law
- Child in need of care and protection
- Child Welfare Committees
- Juvenile Justice Boards

- Special homes

4. *Protection of Children from Sexual Offences (POCSO) Act, 2012*

- Comprehensive legislation on child sexual abuse
- Special courts
- Child-friendly procedures
- Stringent penalties

5. *Prohibition of Child Marriage Act, 2006*

- Child marriage prohibited
- Marriage below 18 (girl) / 21 (boy) — void/voidable
- Penalties for solemnizing, abetting

6. *Bonded Labour System (Abolition) Act, 1976*

- All bonded labour declared void
- Release and rehabilitation of bonded labourers
- Includes child bonded labour

INTERNATIONAL FRAMEWORK

UN Convention on Rights of Child (UNCRC), 1989

India ratified in 1992. Four guiding principles:

- **Non-discrimination** — no discrimination on any ground
- **Best interests of the child** — primary consideration
- **Right to life, survival, development**
- **Right to be heard** — child's views given weight

Key Rights:

- Right to education (Articles 28-29)
- Right to play and recreation (Article 31)
- Protection from economic exploitation (Article 32)
- Protection from sexual abuse (Article 34)
- Protection from trafficking (Article 35)

ILO Conventions

- **Convention 138 (1973)** — Minimum Age for Employment (India ratified 2017)
- **Convention 182 (1999)** — Worst Forms of Child Labour (India ratified 2017)

Judicial Pronouncements — Summary

⚖️ **Case: *Bandhua Mukti Morcha v. Union of India (1984)*** — Rescue of bonded child labour; Articles 21 and 23 violated.

⚖️ **Case: *M.C. Mehta v. State of Tamil Nadu (1996)*** — Child labour in fireworks factories; Article 24 violated; comprehensive relief directions.

⚖️ **Case:** *Unni Krishnan v. State of AP (1993)* — Right to education for children under Article 21 (before 86th Amendment).

⚖️ **Case:** *People's Union for Democratic Rights v. Union of India (1982)* — Children in construction = forced labour; Articles 23, 24 violated.

⚖️ **Case:** *Gaurav Jain v. Union of India (1997)* — Children of sex workers entitled to dignity and education; State to provide.

⚖️ **Case:** *Sheela Barse v. Union of India (1986)* — Children in jails — rights violated; sent to children's homes.

Challenges Remaining

- **Child labour** persists in unorganised sector
- **Child marriage** still prevalent in rural areas
- **Child trafficking** major issue
- **Street children** — outside education system
- **Child abuse** — underreported
- Inadequate implementation of **POCSO Act**

Conclusion

The **Constitution of India** provides a robust framework for child rights — through **Fundamental Rights** (Articles 21, 21-A, 23, 24) and **Directive Principles** (Articles 39(e), 39(f), 45). Landmark judgments have expanded these rights through interpretation. A comprehensive legislative framework — Child Labour Act, RTE Act, JJ Act, POCSO — implements these rights. India's ratification of ILO Conventions 138 and 182 in 2017 reinforces international commitment. The challenge is **implementation** — ensuring that every child in India can exercise their constitutional rights to **life, education, dignity, and freedom from exploitation**, as envisioned by the founding fathers under a **just, equal, and humane Constitution**.

PART C — PROBLEM QUESTIONS (10 marks each)

💡 **TIP FOR PART C:** Always use IRAC method:

- **Issue** — what is the legal question?
- **Rule** — what law/section applies?
- **Application** — apply law to facts
- **Conclusion** — clear yes/no answer

C.1 — Child aged 12 employed in fireworks factory. Legal position and remedies? ★★★★★

Facts

A factory owner employs a **12-year-old child** in his fireworks manufacturing factory in Sivakasi. The child works 8 hours a day for Rs.100/day. The child's

parents consented. The child's school is aware.

Issue

- (1) Is the employment of a 12-year-old child in a fireworks factory legal?
- (2) Does parental consent make it legal?
- (3) What are the remedies and penalties?

Rule (Applicable Law)

- **Section 3 of Child Labour (Prohibition and Regulation) Act, 1986** (as amended 2016)
- **NO child shall be employed in ANY occupation or process** — absolute prohibition for below 14
- **Article 24 of Constitution** — No child below 14 in any factory or hazardous employment
- **Section 14 of Child Labour Act** — Penalties
- **M.C. Mehta v. State of Tamil Nadu (1996)** — fireworks factory = hazardous; child labour violation

Application

Child Below 14 — Absolute Prohibition

- Child is 12 years old — below 14
- Section 3 (post-2016) prohibits employment in **ANY occupation or process**
- Fireworks manufacturing is **hazardous** — doubly prohibited
- No exception for parental consent
- No exception for need or poverty

Parental Consent is Irrelevant

- The Act does not provide exception for parental consent
- Parents cannot waive child's constitutional right under Article 24
- Child cannot work even if parents "permit"
- *M.C. Mehta v. State of TN* — poverty/consent not an excuse

School Awareness Doesn't Help

- School knowing does not legalise employment
- In fact, employment affecting school = additional violation
- Child's right to education under Article 21-A is being violated

Fireworks = Hazardous

- Fireworks involve explosive materials
- High risk of burns, explosions, chemical injuries
- Even if Section 3 had exceptions, fireworks would NOT qualify
- *M.C. Mehta case* specifically dealt with fireworks

Penalties

On the Employer:

- **Imprisonment:** 6 months to 2 years (first offence)
- **Fine:** Rs.20,000 to Rs.50,000
- **Repeat:** 1-3 years imprisonment

On Parents (if knowingly sent):

- First offence: Warning
- Repeat: Fine up to Rs.10,000

Remedies for Child

- **Rescue** by Police / District Magistrate
- **Rehabilitation:**
 - Rs.15,000 from Child Labour Rehabilitation Fund
 - State adds Rs.5,000
- **Rs.20,000 additional compensation** from employer (per *M.C. Mehta*)
- **Enrolment in school** — government duty
- **Family support:**
 - Adult family member offered alternate employment, OR
 - Rs.5,000 deposited in fund (per *M.C. Mehta*)

Constitutional Violations

- **Article 24** — Employment in hazardous factory; directly violated
- **Article 21-A** — Right to education being denied
- **Article 39(f)** — Child's development and dignity compromised
- **Article 23** — Work for Rs.100/day = under-remuneration; quasi-forced labour

Case Laws

⚖️ **Case:** *M.C. Mehta v. State of Tamil Nadu (1996)* — Child labour in Sivakasi fireworks factories is violation of Article 24. SC gave comprehensive directions.

⚖️ **Case:** *People's Union for Democratic Rights v. Union of India (1982)* — Child labour = forced labour under Article 23.

⚖️ **Case:** *Bandhua Mukti Morcha v. Union of India (1984)* — Child bonded labour rescue.

Conclusion

NO, the employment of a 12-year-old child in a fireworks factory is **absolutely ILLEGAL** under:

- **Section 3 of Child Labour Act, 1986** (amended 2016) — prohibition for any occupation
- **Article 24 of Constitution** — no child below 14 in hazardous employment

- Fireworks = hazardous industry

Parental consent is IRRELEVANT — this is a constitutional right of the child; parents cannot waive it.

The employer faces:

- Imprisonment 6 months to 2 years + fine Rs.20,000 to Rs.50,000

The child is entitled to:

- Immediate rescue and rehabilitation
- Rs.20,000 + Rs.15,000 rehabilitation fund
- Enrolment in school (free under RTE)
- Family support (alternate job/Rs.5,000)

This case mirrors the **Sivakasi fireworks case** (*M.C. Mehta, 1996*) — the constitutional vision demands immediate action.

C.2 — Women workers paid less than men for same work. Valid? Remedies? ★★★★★

Facts

In a garment factory, **male workers** doing machine stitching are paid **Rs.15,000/month** while **female workers** doing identical machine stitching work are paid only **Rs.12,000/month**. The employer justifies this saying “women are less productive” and “men have families to support.”

Issue

Whether paying different wages to male and female workers for same/similar work is valid under Indian law?

Rule (Applicable Law)

- **Section 3 of Code on Wages, 2019** — No employer shall pay any employee at a rate less than that paid to employees of another gender for same/similar work
- **Equal Remuneration Act, 1976** (now repealed — consolidated into Code on Wages)
- **Article 39(d)** — Equal pay for equal work (DPSP)
- *Randhir Singh v. Union of India (1982)* — Equal pay implicit in Articles 14, 16

Application

Same Work — Test

- Both male and female workers do **machine stitching**
- Same skill, effort, responsibility
- Same working conditions
- This is clearly **same work or work of similar nature**

Employer's Justifications are Invalid

"Women are less productive":

- No evidence provided
- Cannot be presumed
- Individual variations may exist but cannot justify systematic pay difference
- Productivity-linked pay must be applied equally to all
- Section 3 of Code on Wages prohibits gender-based pay differences

"Men have families to support":

- Irrelevant — law looks at work, not personal circumstances
- Many women are sole breadwinners
- This is a classic stereotype
- Explicitly rejected by courts
- *Mackinnon Mackenzie v. Audrey D'Costa (1987)* — such reasoning invalid

Legal Position

- Pay difference of Rs.3,000 is **direct gender discrimination**
- Violates Section 3 of Code on Wages, 2019
- Violates Article 39(d)
- Violates Article 14 (equal protection) and Article 15(1) (no sex discrimination)

Case Laws

⚖️ **Case:** *Randhir Singh v. Union of India (1982)* — Equal pay for equal work is implicit in Articles 14 and 16.

⚖️ **Case:** *Mackinnon Mackenzie & Co. v. Audrey D'Costa (1987)* — Women stenographers doing same work as men entitled to same pay. "Traditional" justifications for pay gap rejected.

⚖️ **Case:** *PUDR v. Union of India (1982)* — Underpaying women workers is forced labour.

⚖️ **Case:** *Air India v. Nergesh Meerza (1981)* — Discriminatory conditions for women struck down.

Remedies Available

1. Complaint to Inspector-cum-Facilitator (Code on Wages 2019):

- Inspector investigates
- Orders equal pay + arrears
- Penalties on employer

2. Application to Authority under Code on Wages:

- Women workers file claim
- Authority decides
- Awards arrears of Rs.3,000/month for each woman × months
- Compensation up to 10 times

3. Writ Petition in High Court:

- Article 226 — violation of Articles 14, 15, 39(d)
- Court can direct equal pay + back wages

4. Labour Commissioner:

- Complaint for violation of equal remuneration
- Conciliation + enforcement

5. Industrial Tribunal / Labour Court:

- Under Industrial Relations Code
- For classification dispute

Penalties on Employer

- **Code on Wages, 2019, Section 54:**
 - First offence: Fine up to **Rs.50,000**
 - Repeat: Imprisonment up to 3 months + fine up to Rs.1 lakh
- Criminal complaint possible

Calculation of Arrears

If this has been happening for 1 year:

- Per woman: Rs.3,000 × 12 months = Rs.36,000
- Plus compensation up to 10 times = Rs.3,60,000 per woman
- Multiplied by number of women workers affected

Conclusion

NO, the employer's practice is **INVALID** and **ILLEGAL** under:

- **Section 3 of Code on Wages, 2019** — direct prohibition on gender-based wage differential for same/similar work
- **Article 39(d)** — Equal pay is a constitutional goal
- **Article 14 and 15(1)** — No discrimination on sex

The employer's justifications ("women less productive" and "men have families") are **legally irrelevant and judicially rejected** — the law looks at the **WORK**, not the gender or family situation.

Women workers should:

- File complaint with **Inspector-cum-Facilitator**
- File claim under **Section 45 of Code on Wages**
- Seek **back wages** (Rs.3,000/month for each month of discrimination)

- Seek **compensation up to 10 times** the amount due

The factory owner faces **fine up to Rs.50,000** for first offence and potential imprisonment for repeat violations.

C.3 — Factory with 300 workers has no canteen. Violation?



Facts

A textile factory employs **300 workers** on its premises. The factory does not have a canteen. Workers must walk 1 km to the nearest food stall for lunch. Factory management claims canteen is not compulsory and setting it up is “too expensive.”

Issue

Whether a factory with 300 workers is legally required to maintain a canteen, and what are the consequences of non-compliance?

Rule (Applicable Law)

- **Section 46 of Factories Act, 1948** — Canteens
- **Mandatory** where **250 or more workers** are ordinarily employed
- State government prescribes rules about canteen management
- **Section 92** — Penalty for violation: imprisonment up to 2 years OR fine up to Rs.1 lakh

Application

- Factory has **300 workers** — exceeds the **250+ threshold**
- Therefore, **Section 46 is APPLICABLE**
- Factory is **REQUIRED** to provide canteen
- Non-provision is a **VIOLATION** of the Factories Act, 1948

Employer's Justifications are Invalid

“Canteen not compulsory”:

- Incorrect — Section 46 makes it **MANDATORY** above 250 workers
- Not discretionary

“Too expensive”:

- Cost is not an excuse under the Act
- This is a statutory obligation
- Workers' welfare takes precedence

Workers' Situation is Problematic

- Walking 1 km for lunch:
 - Takes too long (reduces actual lunch break)
 - Risk to safety (road crossing)

- Unhygienic external options
- This affects workers' health (Section 11 duty)
- Indirectly affects productivity

What Canteen Must Provide [Section 46 + Rules]

- Nutritious food
- Reasonable prices (not profit-oriented)
- Clean, hygienic conditions
- Workers' canteen committee involvement
- Suitable furniture, utensils, cooking equipment

Consequences of Non-Compliance

1. Penalty [Section 92]:

- Imprisonment up to **2 years** OR
- Fine up to **Rs.1 lakh**
- Or both
- Manager/Occupier personally liable

2. Inspector's Power:

- Inspector can issue notice to provide canteen
- Factory may be directed to comply within specified time

3. Closure Threat:

- If compliance not made — factory can be directed to stop operations (last resort)

4. Workers' Remedies:

- Complaint to **Inspector of Factories**
- Complaint to **State Labour Department**
- Collective complaint through **trade union**
- Workers can approach **Chief Inspector of Factories**

Other Welfare Deficiencies to Check

If no canteen, what else may be lacking?

- **Rest rooms** (mandatory for 150+) — check
- **First-aid boxes** (mandatory for 150+ — i.e., 2 boxes for 300 workers) — check
- **Welfare officer** (mandatory for 500+) — not yet required (only 300 workers)

Case Laws

🔑 **Case:** *State of UP v. Ram Sajiwan (1989)* — Welfare provisions to be construed in favour of workers.

🏛️ **Case:** *Hindustan Cables Ltd. v. Workmen (1964)* — Canteen is a welfare right of workers.

🏛️ **Case:** *Ravi Shankar Sharma v. State of Rajasthan (1993)* — Strict compliance with welfare provisions.

Conclusion

YES, the factory is **REQUIRED** to maintain a canteen under **Section 46** of the **Factories Act, 1948** because it employs **300 workers** — exceeding the **250-worker threshold**.

Non-compliance is a **VIOLATION** of Section 46, attracting:

- Imprisonment up to **2 years** OR fine up to **Rs.1 lakh** (Section 92)

The employer's claim that it is "too expensive" is **NOT a valid defence** — Section 46 is a mandatory obligation.

Workers should immediately:

1. File complaint with **Inspector of Factories**
2. Demand compliance within reasonable time
3. Report to **Chief Inspector of Factories** if ignored
4. File FIR for violation under Factories Act

Factory management must **immediately set up a canteen** and provide nutritious food at reasonable prices as per State government rules.

C.4 — Factory worker made to work 12 hours/day without overtime. Valid? ★★★★★

Facts

Workers in a factory are routinely made to work **12 hours per day** (9 AM to 9 PM). No extra wages are paid for the extra hours. The employer says "company policy is 12-hour shifts" and workers "agreed" to this when hired.

Issue

Whether compelling workers to work 12 hours/day without additional wages violates the Factories Act, 1948?

Rule (Applicable Law)

- **Section 54 of Factories Act, 1948** — Maximum **9 hours per day**
- **Section 51** — Maximum **48 hours per week**
- **Section 55** — Interval for rest: 30 minutes after 5 hours
- **Section 56** — Spread-over: not more than **10.5 hours** including rest
- **Section 59** — Overtime: work beyond 9 hours/day or 48 hours/week must be paid at **DOUBLE rate**
- **Section 92** — Penalty for violations
- **Workers' consent CANNOT override statutory limits**

Application

Violation 1: Exceeding Daily Hour Limit

- Workers work 12 hours/day
- Section 54 limits: **9 hours per day**
- Excess: **3 hours per day** (hours 10, 11, 12)
- This is a direct violation

Violation 2: No Overtime Pay

- 3 hours extra per day = overtime
- Section 59: Overtime must be paid at **DOUBLE the ordinary rate**
- Non-payment of OT wages = additional violation

Violation 3: Spread-Over Exceeded

- 12 hours exceeds the **10.5 hours spread-over** under Section 56

Workers' Consent is Irrelevant

- Statutory provisions CANNOT be contracted out
- Employment agreement to work 12 hours is void (Section 111-A)
- Workers' economic vulnerability makes consent meaningless
- *Arvind Mills v. K.R. Gadgil* — custom/agreement cannot override statute

"Company Policy" is No Defence

- Company policy must comply with law
- A policy requiring 12-hour shifts without OT pay is **illegal**

Penalties on Employer

- **Section 92:** Imprisonment up to **2 years** OR fine up to **Rs.1 lakh**
- **Per worker, per day of violation**
- Manager and Occupier personally liable
- Factory operation may be suspended

Workers' Remedies

1. Complaint to Inspector of Factories:

- Inspector investigates
- Issues notice for compliance
- Prosecution if not complied

2. Claim for Overtime Wages:

- Under Code on Wages, 2019 (Section 59 basis)
- Authority determines OT amount
- Awards arrears with interest

3. Labour Court/Industrial Tribunal:

- Dispute about wages/hours

- Award of back wages and OT

4. Writ Petition:

- High Court — violation of working hour norms
- Fundamental right to decent work conditions

Calculation of Overtime Due

- Say worker's monthly wage = Rs.20,000
- Daily rate = Rs.20,000 / 26 = Rs.769
- Hourly rate = Rs.769 / 9 = Rs.85.5
- **Overtime rate = Rs.85.5 × 2 = Rs.171/hour**
- Extra hours per day: 3
- OT per day: Rs.171 × 3 = **Rs.513 per day**
- For 25 working days/month: Rs.513 × 25 = **Rs.12,825 per month extra**

What is Permissible?

- Max ordinary work: 9 hours/day, 48 hours/week
- OT (with double pay): generally max 50 hours per quarter
- Under Section 65: Some exemptions for urgent repairs
- Total (normal + OT) should not normally exceed 60 hours/week

Case Laws

🏛️ **Case:** *Arvind Mills v. K.R. Gadgil (1941)* — Statutory working hours cannot be contracted out.

🏛️ **Case:** *Ravi Shankar Sharma v. Rajasthan (1993)* — Strict compliance with working hour norms.

🏛️ **Case:** *PUDR v. Union of India (1982)* — Unpaid overtime = forced labour under Article 23.

Conclusion

NO, making workers work 12 hours/day without overtime pay is **ILLEGAL** and violates:

- **Section 54** — daily limit of 9 hours
- **Section 56** — spread-over limit of 10.5 hours
- **Section 59** — overtime must be paid at **DOUBLE** rate

Workers' consent and "company policy" are **NOT valid defences** — statutory protections cannot be waived.

Workers are entitled to:

- Reduction to 9 hours/day (immediate compliance)
- **Overtime pay at DOUBLE rate** for the extra 3 hours per day
- **Arrears** for past months of unpaid OT
- **Compensation** for illegal detention beyond hours

Employer faces:

- Criminal prosecution (imprisonment up to 2 years + fine up to Rs.1 lakh)
- Per violation, per worker, per day — significant cumulative liability
- Reputational damage and labour unrest

Workers should file complaint with **Inspector of Factories** and claim OT arrears through **Code on Wages** authority.

C.5 — 16-year-old employed in coal mine. Legal position?



Facts

A coal mining company employs a **16-year-old** boy in underground operations. The boy has a school leaving certificate and claims he needs the work to support his family. The mine manager argues that since the boy is above 14, he can work.

Issue

Whether a 16-year-old adolescent can be employed in underground coal mine operations under Indian law?

Rule (Applicable Law)

- **Section 3-A of Child Labour (Prohibition & Regulation) Act, 1986** (as amended 2016) — Adolescents (14-18) **PROHIBITED** from hazardous occupations listed in Schedule
- **Mines Act, 1952** — No person below 18 shall be employed in underground mine operations
- **Schedule to Child Labour Act** — Mining is listed as **hazardous occupation**
- **Section 40 of Mines Act, 1952** — Minimum age for underground work is **18 years**
- **Factories Act, 1948, Section 23** — No young person on dangerous machines

Application

Two Layers of Prohibition

Layer 1: Child Labour (Prohibition & Regulation) Act, 1986:

- The boy is 16 years old — an **adolescent** (14-18)
- Section 3-A prohibits adolescents from **hazardous occupations listed in Schedule**
- **Mining** is listed in the Schedule as hazardous
- Therefore, the 16-year-old **CANNOT** work in a coal mine

Layer 2: Mines Act, 1952:

- Section 40 of Mines Act — No person below **18 years** shall be employed in any underground mine
- More stringent than Child Labour Act for mines
- 16-year-old is below 18 → **absolutely prohibited from underground operations**

Manager's Argument is Wrong

- "Above 14 so can work" — incorrect
- Section 3-A specifically restricts hazardous work for 14-18 years
- Mines Act further restricts underground work to 18+ years
- School leaving certificate is irrelevant — age matters, not education

Family Need is Irrelevant

- Economic necessity cannot override statutory protection
- *Sanjit Roy v. State of Rajasthan (1983)* — economic need no excuse for exploitation
- Article 39(e) — citizens must not be forced by economic necessity into unsuitable work

What is "Hazardous" for Adolescents?

Schedule to Child Labour Act (post-2016) includes:

- **Mines** (all types)
- Inflammable substances and explosives
- Hazardous processes (as under Factories Act First Schedule)
- Tobacco products
- Explosives manufacturing

Penalties

Under Child Labour Act, 1986:

- Employing adolescent in hazardous occupation:
 - **Imprisonment: 6 months to 2 years**
 - **Fine: Rs.20,000 to Rs.50,000**
 - Repeat: 1-3 years imprisonment

Under Mines Act, 1952:

- Employing person below 18 underground:
 - **Fine and imprisonment** under Mines Act
 - Additional liability to Inspector of Mines

Remedies

- **Rescue** by Labour Inspector / District Magistrate
- **Rehabilitation** of the boy
- **Prosecution** of mine manager and company
- **Compensation** to the boy
- **School enrollment** under RTE Act (if age 6-14) or vocational training

What If Above Ground?

- **Above-ground mine operations** for adolescents (14-18): May be permitted for non-hazardous work in some contexts
- But underground: **absolute prohibition (below 18)** under Mines Act

What Work Can a 16-Year-Old Do?

- **Non-hazardous, non-mine work** (shops, establishments, some services)
- Limited hours (Section 3 and 3-A of Child Labour Act)
- Not between 7 PM and 8 AM
- No double employment
- Family enterprise (non-hazardous) after school

Case Laws

⚖️ **Case:** *Bandhua Mukti Morcha v. Union of India (1984)* — Exploitation of young persons in hazardous work; Article 23 violated.

⚖️ **Case:** *M.C. Mehta v. State of Tamil Nadu (1996)* — Hazardous employment of young persons violates constitutional rights.

⚖️ **Case:** *Sanjit Roy v. State of Rajasthan (1983)* — Economic necessity no justification for exploitative employment.

⚖️ **Case:** *People's Union for Democratic Rights v. Union of India (1982)* — Articles 23 and 24 violated by employment in hazardous conditions.

Conclusion

NO, the employment of the **16-year-old** in underground coal mine operations is **ILLEGAL** under:

1. **Section 3-A of Child Labour Act, 1986** — mines are listed as hazardous; adolescents (14-18) prohibited
2. **Section 40 of Mines Act, 1952** — underground operations require minimum age **18 years**

The mine manager's argument ("above 14 can work") is **INCORRECT** — the law has additional protections for hazardous work.

The boy's family need and his school leaving certificate are **legally irrelevant** — age and statutory protection are what matter.

Consequences for employer:

- Under Child Labour Act: Imprisonment 6 months to 2 years + fine Rs.20,000 to Rs.50,000
- Under Mines Act: Additional penalties

Remedies:

- Immediate rescue from underground operations
- Rehabilitation and vocational training

- Prosecution of mine manager
- Compensation to the boy and family

This case illustrates that the protection of adolescents in hazardous work has **TWO LAYERS** — Child Labour Act + specific industry laws (Mines Act, Factories Act) — ensuring comprehensive protection.

UNIT V — QUICK REVISION SHEET

Key Sections

Factories Act, 1948

Section	Topic
Section 2(m)	Definition of factory
Section 2(l)	Definition of worker
Section 2(n)	Definition of occupier
Section 2(k)	Manufacturing process
Section 11	Cleanliness
Section 12	Disposal of wastes
Section 13	Ventilation and temperature
Section 14	Dust and fumes
Section 16	Overcrowding (14.2 cubic metres)
Section 17	Lighting
Section 18	Drinking water
Section 19	Latrines and urinals
Section 21	Fencing of machinery
Section 22	Work on machinery in motion
Section 23	Young persons on dangerous machines
Section 27	Near cotton openers
Section 28	Hoists and lifts (6 months test)
Section 38	Fire precautions
Section 40-A	Safety officer (1000+ workers)
Section 41-B	Disclosure in hazardous processes
Section 41-G	Workers' safety participation
Section 41-H	Workers' right to warn
Section 42	Washing facilities
Section 45	First-aid (1 per 150 workers)
Section 46	Canteen (250+ workers)
Section 47	Rest room (150+ workers)
Section 48	Crèche (30+ women)

Section	Topic
Section 49	Welfare officer (500+ workers)
Section 51	Weekly hours (48 max)
Section 54	Daily hours (9 max)
Section 55	Rest interval (30 min after 5 hrs)
Section 56	Spread-over (10.5 hrs max)
Section 59	Overtime (double rate)
Section 66	Women — no night work (7PM-6AM)
Section 67	No child below 14
Section 68	Certificate of fitness
Section 71	Young persons — 4.5 hrs max
Section 79	Annual leave (1/20 adult; 1/15 young)
Section 92	General penalty
Section 96-A	Hazardous processes penalty

Child Labour (Prohibition & Regulation) Act, 1986

Section	Topic
Section 2	Definitions (child, adolescent)
Section 3	Prohibition (below 14)
Section 3-A	Prohibition in hazardous (14-18)
Section 6-13	Regulation of adolescent labour
Section 13	Health and safety rules
Section 14	Penalties
Sections 14-B to 14-D	Rehabilitation fund

Equal Remuneration Act, 1976 / Code on Wages, 2019

Law	Section	Topic
ER Act 1976	Section 4	Equal pay duty
ER Act 1976	Section 5	No discrimination in recruitment
ER Act 1976	Section 6	Advisory committee
ER Act 1976	Section 10	Penalties
Code on Wages 2019	Section 3	No gender discrimination (M/F/Transgender)
Code on Wages 2019	Section 54	Penalty (up to Rs.50,000)

Key Numbers to Remember

Factories Act

Provision	Number
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Provision	Number
Factory threshold (with power)	10+ workers
Factory threshold (without power)	20+ workers
Space per worker	14.2 cubic metres
First-aid box	1 per 150 workers
Ambulance room	500+ workers
Rest room/shelter	150+ workers
Canteen	250+ workers
Crèche	30+ women workers
Welfare officer	500+ workers
Safety officer	1000+ workers
Weekly hours	48 max
Daily hours	9 max
Rest interval	30 min after 5 hrs
Spread-over	10.5 hrs max
Overtime rate	Double ordinary rate
Walls painted	Every 5 years
Whitewashed	Every 14 months
Lift tested	Every 6 months
Annual leave (adult)	1 per 20 days
Annual leave (young)	1 per 15 days
Carry-forward (adult)	30 days
Carry-forward (young)	40 days
Young person hours	Max 4.5/day
Women night work	Prohibited 7PM-6AM
Cool drinking water	250+ workers
General penalty	2 years/Rs.1 lakh
Hazardous penalty	7 years/Rs.2 lakh

Child Labour Act

Provision	Number
Child	Below 14 years
Adolescent	14-18 years
Penalty (first)	6 months to 2 years + Rs.20,000-50,000
Penalty (repeat)	1-3 years
Rehabilitation fund per child	Rs.15,000 (+ Rs.5,000 State)
M.C. Mehta compensation	Rs.20,000 per child

Constitutional Articles

Article	Right
Article 21	Right to life (includes education,

Article	Right
	dignity)
Article 21-A	Free education 6-14
Article 23	No trafficking/forced labour
Article 24	No child below 14 in hazardous employment
Article 39(d)	Equal pay for equal work
Article 39(e)	Children's health not abused
Article 39(f)	Children's development in dignity
Article 45	Early childhood care

Top 12 Cases for Unit V

1. *M.C. Mehta v. Union of India (1986)* — Oleum gas; Absolute Liability principle
2. *M.C. Mehta v. State of Tamil Nadu (1996)* — Child labour Sivakasi; Article 24
3. *Bandhua Mukti Morcha v. Union of India (1984)* — Bonded child labour rescue
4. *PUDR v. Union of India (1982)* — Construction workers; Articles 23, 24
5. *Unni Krishnan v. State of AP (1993)* — Right to education under Article 21
6. *Randhir Singh v. Union of India (1982)* — Equal pay implicit in Articles 14, 16
7. *Mackinnon Mackenzie v. Audrey D'Costa (1987)* — Equal pay; women stenographers
8. *State of Punjab v. Jagjit Singh (2017)* — Daily wagers = regular pay for same work
9. *Air India v. Nergesh Meerza (1981)* — Anti-pregnancy discrimination; Articles 14, 21
10. *Daily Rated Casual Labour v. Union of India (1988)* — Equal pay judicially enforceable
11. *PUDR v. Union of India (1982)* — Underpaying women = forced labour
12. *Ravi Shankar Sharma v. State of Rajasthan (1993)* — Strict compliance with safety

Memory Mnemonics

- **Health (Sections 11-20):** "Clean, Waste, Ventilate, Dust, Humidify, Overcrowd, Light, Drink, Latrine, Spit" (11-20)
- **Welfare Numbers:** "150 First Aid & Rest; 250 Canteen; 30 Women Crèche; 500 Welfare Officer"
- **Working Hours:** "48 weekly, 9 daily, 30 min rest, 10.5 spread-over, DOUBLE overtime"
- **Child ages:** "Below 14 = NOTHING (any job); 14-18 = NOT HAZARDOUS; 18+ = ANY"
- **Equal Pay Articles:** "14-15-16-39(d)" — Equality foundation for equal pay

- Child Rights Articles: “21-21A-23-24-39(e)-39(f)-45”
- Bhopal → 1987 Amendment → Chapter IV-A

Top Trap Questions

- “Factory with 200 workers — canteen compulsory?” → NO (needs 250+)
- “Factory with 250 workers exactly — canteen?” → YES (250 or more)
- “Child helping parent’s small shop?” → May be permitted (family enterprise exception, post-2016)
- “16-year-old working in textile factory?” → MAY be OK if not hazardous + certificate of fitness
- “16-year-old in coal mine?” → ILLEGAL (mine is hazardous; Mines Act requires 18+)
- “Women working 10 PM shift in IT company?” → May be permitted with State amendment safeguards
- “Equal pay only for women?” → No — Code on Wages 2019 covers male, female, transgender
- “Worker works 50 hours in one week — OT?” → Only for hours beyond 48 (2 hours OT at double)
- “Young person (16) — how many hours?” → Max 4.5 hours per day
- “Parental consent for child labour?” → IRRELEVANT; absolutely prohibited

End of Unit V — Factories Act, Child Labour, Equal Remuneration / Labour Law -II | Osmania University LLB 3-YDC IV Semester